

25TRCV00507 25TRCV00507

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Case Number: 25TRCV00507 Hearing Date: August 18, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – August 18, 2026

Calendar No.

PROCEEDINGS

Alan

Anthony Brimer, III, et al. v. State of California, et al.

25TRCV00507

Remy Huyen Thi Dang's Motion for Determination of
Good Faith Settlement

TENTATIVE RULING

Remy Huyen

Thi Dang's Motion for Determination of Good Faith Settlement is granted.

Background

Plaintiffs filed the Complaint on February 14, 2025

and the First Amended Complaint was filed on November 26, 2025. Plaintiffs' decedent was riding a motorcycle and was involved in a motor vehicle collision with Defendant Remy Huyen Thi Dang ("Dang") who was operating a Toyota Camry. Plaintiffs also included a cause of action for Dangerous Condition of Public Property against the State of California and the City of Redondo Beach.

Motion for Determination of Good Faith Settlement

Defendant moves for an order finding that the settlement between Plaintiffs and moving Defendant Dang was made in good faith pursuant to CCP §§ 877 and 877.6.

"[Code of Civil Procedure] Section 877.6 was enacted by the Legislature in 1980 to establish a statutory procedure for determining if a settlement by an alleged joint tortfeasor has been entered into in good faith and to provide a bar to claims of other alleged joint tortfeasors for equitable contribution or partial or comparative indemnity when good faith is shown." *IRM Corp. v. Carlson* (1986) 179 Cal. App. 3d 94, 104.

CCP § 877.6(a)(1) provides, in relevant part, that, on noticed motion, "[a]ny party to an action wherein it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff . . . and one or more alleged tortfeasors or co-obligors" "A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." CCP § 877.6(c). Although a determination that a settlement was in good faith does not discharge any other party from liability, "it shall reduce the claims against the others in the amount stipulated" by the settlement. CCP § 877(a).

In *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499, the California Supreme Court identified the following nonexclusive factors courts are to consider in determining if a settlement is in good faith under section 877.6: "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the

amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial.

Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.”

The evaluation of whether a settlement was made in good faith is required to “be made on the basis of information available at the time of settlement.” Tech-Bilt, 38 Cal.3d at 499. “[A] defendant’s settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant’s liability to be.” [Citation.]” Id. at 499.

“The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far ‘out of the ballpark’ in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a ‘settlement made in good faith’ within the terms of section 877.6.”

Tech-Bilt, 38 Cal.3d at 499-500.

“Thus, Tech-Bilt held that in determining whether a settlement was made in good faith for purposes of section 877.6, a key factor a trial court should consider is whether the amount paid in settlement bears a reasonable relationship to the settlor’s proportionate share of liability. (Tech-Bilt, supra, 38 Cal.3d at pp. 499–500) This is because one of the main goals of section 877.6 is ‘allocating costs equitably among multiple tortfeasors.’ (Tech-Bilt, supra, 38 Cal.3d at p. 502)” TSI Seismic Tenant Space, Inc. v. Superior Court (2007) 149 Cal. App. 4th 159, 166.

“Accordingly, a court not only looks at the alleged tortfeasor’s potential liability to the plaintiff, but it must also consider the culpability of the tortfeasor vis-à-vis other parties alleged to be responsible for the same injury. Potential liability for indemnity to a nonsettling defendant is an important consideration for the

trial court in determining whether to approve a settlement by an alleged tortfeasor. [Citation.]” Id. at 166.

Moving Defendant and Plaintiffs agreed to a settlement for the total amount of the policy limits of Defendant - \$1,100,000.00. When a motion for determination of good faith settlement is uncontested, a “barebones” motion that sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient to support a good faith determination. *City of Grand Terrace v. Superior Court* (1987) 192 Cal. App. 3d 1251, 1261. Here, the motion sets forth the grounds for a good faith determination and provided a brief declaration setting forth a background of the case. (Decl., Lorin D. Snyder, ¶ 3-4).

A limited opposition was filed by the City of Redondo Beach, which was joined by Defendants The People of the State of California and Toby Arnold Rider. These parties requested a continuance so that Dang's deposition could be completed and additional evidence gathered. The Court granted a continuance and ordered that any supplemental opposition is to be filed and served by August 5, 2026. As of this date, no supplemental oppositions were filed. Thus, no substantive opposition to the motion has been filed.

Therefore, Defendant Dang's settlement with Plaintiffs is deemed to be in good faith. Because the Court has determined that the settlement was made in good faith, the determination “shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” Code Civ. Proc., § 877.6(c).

Therefore, Remy Huyen Thi Dang's Motion for Determination of Good Faith Settlement is granted.

Moving party is ordered to give notice of this ruling.